

25STCV14381 25STCV14381

County: los-angeles

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Case Number: 25STCV14381 Hearing Date: August 6, 2026 Dept: 834

Superior Court of California

County of Los Angeles

Department 834

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LEON ADHOOT,

Plaintiff(s),

vs.

SHAHRAM

MOKHTARZADEH, et al.,

Defendant(s).

Case No.:

25STCV14381

Hearing Date:

August 6, 2026

[TENTATIVE]

ORDER RE: MOTION TO APPOINT PROVISIONAL DIRECTOR

Plaintiff Leon Ahdoot ("Plaintiff"), individually and as trustee of The L&L Ahdoot Family Trust ("Trust") seeks and order appoint Stephen J. Donell ("Donell") provisional director for nominal defendant Oxford Financial, Inc. ("Oxford Inc.).

The unopposed motion is granted.

I.

Background

1.

Factual Background

In February 2009, Plaintiff and defendant Shahram Mokhtarzadeh ("Mokhtarzadeh") formed Oxford Inc., a California corporation. (Ahdoot Decl., ¶ 3.) Plaintiff and Mokhtarzadeh were and have since been equal 50% owners of Oxford Inc. (Ahdoot Decl., ¶ 4.) Plaintiff and Mokhtarzadeh elected themselves to the two seats on Oxford Inc.'s Board of Directors ("Board"). (Ahdoot Decl., ¶ 5; RJN Ex. 14.)

On February 23, 2009, The Board held its first meeting and adopted Oxford Inc.'s bylaws. (Ahdoot Decl., ¶ 7., Exs. 1-2.)

On February 26, 2009, the Plaintiff and Mokhtarzadeh signed a Shareholders' Agreement relating to Oxford Inc.. (Ahdoot Decl., ¶ 10, Ex. 3.)

On March 3, 2009, Plaintiff and Mokhtarzadeh formed nominal defendants Santa Monica Corner, LLC ("Santa Monica LLC") and Santa Fe Corner, LLC ("Santa Fe LLC"). (Ahdoot Decl., ¶ 1; RJN Exs. 4-5.) Plaintiff held and still holds a 49% interest in Santa Monica LLC and Santa Fe LLC as trustee for the Trust. (Ahdoot Decl., ¶¶ 12, 17.) Mokhtarzadeh directed his 49% interest in Santa Monica LLC and Santa Fe LLC to defendant 3A Family Limited Partnership ("3AF Limited Partnership"), which still holds that interest. (Ahdoot Decl., ¶¶ 13, 17.) Oxford Inc. held and still holds the remaining 2% interest in Santa Monica LLC and Santa Fe LLC. (Ahdoot Decl., ¶¶ 16-17.) Plaintiff and Mokhtarzadeh agreed that Oxford Inc. would be the sole manager of both Santa Monica LLC and Santa Fe LLC. (Ahdoot Decl., ¶ 18.)

On or about March 11, 2009, Oxford Inc., Mokhtarzadeh for 3AF Limited Partnership, and Plaintiff for the Trust all agreed to Operating Agreements for Santa Monica LLC and Santa Fe LLC. (Ahdoot Decl., ¶¶ 19-20, Exs. 4-5.) Santa Monica LLC and Santa Fe LLC each acquired one piece of income-producing real property. (Ahdoot Decl., ¶ 21; RJN Exs. 6-8.)

On December 27, 2023, Mokhtarzadeh recorded one quitclaim deed each for Santa Monica LLC and Santa Fe LLC purporting, as a member of the LLCs, to transfer a 49% interest in each company's real property to 3AF Limited Partnership. (Ahdoot Decl., ¶ 22; RJN Exs. 9-10.)

Plaintiff never agreed to change the structure or manager of either Santa Monica LLC or Santa Fe LLC, nor did he consent to transfer any real property interest away from Santa Monica LLC or Santa Fe LLC. (Ahdoot Decl., ¶¶ 23-30.)

Because Plaintiff and Mokhtarzadeh can no longer agree on how to operate Oxford Inc., neither Oxford Inc. nor Santa Fe LLC have filed a corporate tax return since 2018, and Santa Monica LLC has not filed annual tax returns since 2021. (Ahdoot Decl., ¶¶ 34-42, Exs. 6-9.) On July 1, 2025, Plaintiff received a Notice of Suspension from the Franchise Tax Board. (Ahdoot Decl., ¶ 39, Ex. 7.)

2.

Procedural History

On May 15, 2025, Plaintiff filed this action against defendants Mokhtarzadeh, 3AF Partnership, ISMRE, Inc. ("ISMRE"), and 3AF Limited Partnership (collectively, "Defendants"), naming Santa Monica LLC, Santa Fe LLC, and Oxford Inc. as nominal defendants. On July 21, 2025, Defendants filed their answer to Plaintiff's complaint.

On July 29, 2025, the court denied Plaintiff's ex parte application for a temporary restraining order, order to show cause ("OSC") re: preliminary injunction, and appointment of a provisional director for Oxford for failure to show emergency justifying ex parte relief.

On March 24, 2026, Plaintiff filed an ex parte application for an OSC re: appointment of a provisional director for Oxford. On March 25, 2026, the court, pursuant to the parties' oral stipulation at

hearing, deemed Plaintiff's application a noticed motion for appointment of a provisional director for Oxford.

The court set the hearing on the motion for May 21, 2026. That same day, the Court granted the parties' stipulation to continue the hearing to July 9, 2026 at 9:30 a.m.

On July 9, 2026, the Court denied the parties' ex parte application seeking appointment of a receiver based on their concurrently filed stipulation to same. The Court took the instant motion off calendar based on the parties' representation in their ex parte filing that they were now seeking appointment of a receiver. The Court set an OSC re Appointment of Receiver for July 30, 2026.

On July 30, 2026, counsel for Plaintiff appeared and represented that an amended stipulation for appointment of receiver had been filed with the Court the evening before the hearing. As the document was not available to the Court in advance of the hearing, the Court continued the OSC to August 6, 2026, and re-set the hearing on this motion for that date.

No opposition to the motion has been filed in advance of any of the continued hearing dates on the instant motion.

II.

Requests for Judicial Notice

Plaintiff seeks judicial notice of the following exhibits: (1) 3AF Partnership's Certificate of Limited Partnership (RJN Ex. 1.); (2) ISMRE's Articles of Incorporation (RJN Ex. 2); (3) Oxford's Articles of Incorporation (RJN Ex. 3); (4) Santa Monica's Articles of Organization (RJN Ex. 4); (5) Santa Fe's Articles of Organization (RJN Ex. 5); (6) a grant deed recorded as instrument no. 20090981003 on June 30, 2009 in Los Angeles County (RJN Ex. 6); (7) a trustee's deed upon sale recorded as instrument no. 20131431330 on October 3, 2013 in Los Angeles County (RJN Ex. 7); (8) a grant deed recorded as instrument no. [INSTRNO] on October 8, 2015 in Los Angeles County (RJN Ex. 8); (9) a quitclaim deed recorded as instrument no. 20230908694 on December 27, 2023 in Los Angeles County (RJN Ex. 9); (10) a quitclaim deed recorded as instrument no. 20230908695 on December 27, 2023 in Los Angeles County (RJN Ex. 10); (11) ISMRE's Statement of Information filed January 13, 2025 (RJN Ex. 11); (12) ISMRE's Statement of Information filed January 8, 2026 RJN Ex. 12); (13) A

screenshot of search results from the Secretary of State's online business search using the terms "3A Family Limited Partnership (RJN Ex. 13); (14) Oxford's Statement of Information filed April 1, 2025 (RJN Ex. 14); (15) Santa Monica's Statement of Information filed April 4, 2025 (RJN Ex. 15); and (16) Santa Fe's Statement of Information filed April 4, 2025 (RJN Ex. 16).

The requests are granted. (Evid. Code § 452(c), (h).)

III.

Applicable Law

Corporations Code^[1]

section 308 provides two avenues for appointment of a provisional director.

First, the court may appoint a provisional director if a corporation has an even number of directors who cannot agree on management of the corporation, to the extent that it can no longer conduct its business or to the extent that there is a danger its property or business will be impaired or lost. (§ 308(a).) In this circumstance, the court may appoint a provisional director on petition of any director, or by holders of at least a third of the corporation's voting power. (Id.)

Second, the court may appoint a provisional director if the shareholders of the corporation are deadlocked such that they cannot elect directors at an annual shareholder meeting. (§ 308(b).) In this circumstance, the court may appoint a provisional director on petition by at least half of the corporation's voting power. (Id.)

The provisional director must not be a creditor to the corporation, a shareholder of the corporation, or related to any corporation director or any judge of the appointing court by consanguinity or affinity within the third degree. (§ 308(c).) The provisional director holds all rights and powers of a director until the deadlock in the board or among shareholders is broken or until removal by the court or by approval of the outstanding shares. (Id.) The provisional director is entitled to compensation as determined by the court unless otherwise agreed with the corporation. (Id.)

IV.

Analysis

1.

Grounds for Appointment

Plaintiff seeks appointment of a provisional director under section 308, subsection (a).

A petition for appointment of a provisional director under subsection (a) must be brought by a director of the corporation or by holders of at least a third of its voting power. (§ 308(a).)

Plaintiff is a director of Oxford (Ahdoot Decl., ¶ 5.) and also holds half of its voting power (Ahdoot Decl., ¶ 4.) Therefore, Plaintiff may seek appointment of a provisional director under subsection (a).

A petition for appointment of a provisional director under subsection (a) must show that the corporation has an even number of directors who are deadlocked to an extent that the corporation cannot conduct business or is endangering its the business or property. (§ 308(a).)

Oxford has an even number of directors, specifically two. (Ahdoot Decl., ¶ 5.) Those directors are Plaintiff and Mokhtarzadeh. (Ahdoot Decl., ¶ 5.) Plaintiff and Mokhtarzadeh have been unable to agree on management of Oxford since at least 2018, and as a result Oxford has not filed tax returns since 2018, and the companies it manages, Santa Monica LLC and Santa Fe LLC, have similarly failed to file tax returns. (Ahdoot Decl., ¶¶ 34-42.) Additionally, Santa Monica LLC has been suspended by the Franchise Tax Board, and Oxford Inc. and Santa Fe are both at risk of suspension. (Ahdoot Decl., ¶¶ 35-36, 39, Ex. 7.) Based on this evidence, the court finds the deadlock amongst Oxford's directors is both preventing it from conducting its business and endangering its property and business.

Plaintiff has shown that he may seek appointment of a provisional director, and that Oxford Inc.'s even-numbered board of directors is deadlocked. Accordingly, the court may appoint a provisional director for Oxford.

2.

Proposed Provisional Director

The provisional director must not be a creditor to the

corporation, a shareholder of the corporation, or related to any corporation director or any judge of the appointing court by consanguinity or affinity within the third degree. (§ 308(c).)

Donell is not a creditor or shareholder of Oxford, nor is he related to any Oxford director or any judge of Los Angeles County Superior Court. (Donell Decl., ¶ 15.)

Defendants have not opposed in general or specifically to the appointment of Donell.

Therefore, Donell is qualified to be appointed as provisional director for Oxford.

V.

Conclusion

The motion to appoint Donell as provisional director for Oxford is GRANTED.

Date: August 6, 2026

HON. TIANA J. MURILLO

PLEASE TAKE NOTICE:

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Parties

are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

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If

a party intends to submit on this tentative ruling, the party may send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

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Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

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If

the parties neither submit nor appear at hearing, the court may take the matter off calendar or adopt the tentative ruling as the order of the court. After the court has issued a tentative ruling, the court may prohibit the withdrawal of the matter without leave.

[1] All further statutory references are to the Corporations Code unless otherwise stated.